Council to Consider Extending Outdoor Dining Program

November 6, 2023 | San Clemente Times (Capistrano Beach, CA)
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With the upcoming expiration of the city's outdoor dining program, the San Clemente City Council will discuss whether to extend the initiative to mid-2026 on Tuesday night, Nov. 7.

The agenda item comes as the program the council adopted in April 2022 is scheduled to end on Dec. 31, a timeline aligned with those within Assembly Bill 61 and Senate Bill 314, according to the city's agenda report.

The original zoning amendment approved in 2022 was a measure to extend the outdoor dining program, which was initiated to combat the pandemic's impact on restaurants, and established design standards and a monthly licensing fee for participating businesses in Downtown San Clemente.

Gov. Gavin Newsom's Oct. 8 passage of Assembly Bill 1217 extends multiple existing provisions until July 1, 2026, including the "regulatory flexibility" that enables outdoor food and alcohol service, according to Assemblymember Jesse Gabriel, the measure's primary sponsor.

The agenda report states that the council must pass another zoning amendment to continue the current program past its "sunset date." The city would also continue to collect between $5,000 and $10,000 per month from participating businesses.

The San Clemente City Council will conduct its regularly scheduled meeting in person at the Council Chambers at City Hall, beginning at 5 p.m. with the closed session and the public session at 6 p.m. The meeting will be livestreamed on the city's YouTube channel.

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- **Citation (apa Style)**
  Jayden Smith, C. (2023, November 6). Council to Consider Extending Outdoor Dining Program.*San Clemente Times (Capistrano Beach, CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19D6284440804BC0.